



## CHAPTER vii

An Act to enable the Wandsworth and District Gas Company to erect buildings on the burial ground of the Old Baptist Chapel in Fairfield Street Wandsworth and for other purposes.

[26th April 1949.]

**W**HEREAS under and by virtue of the Wandsworth 2 & 3 Geo. 5. c. xlvii.  
Wimbledon and Epsom District Gas Act 1912 and the provisions of subsequent Acts and Orders the Wandsworth and District Gas Company (in this Act referred to as "the Company") are authorised to supply gas throughout the greater part of the metropolitan borough of Wandsworth and a portion of the Metropolitan borough of Battersea in the county of London and a large part of the county of Surrey and a small part of the county of Middlesex:

And whereas the principal works of the Company are situate in Fairfield Street formerly known as Lower North Street in the metropolitan borough of Wandsworth and extend to the river Thames and the Company are the owners of the whole of the land on both sides of the said street from the railway from Windsor to Waterloo Station including a piece or parcel of land on the western side of the street having a frontage thereto of forty-two feet or thereabouts on the back portion of which land a chapel known as the Old Baptist Chapel was erected about the year one thousand eight hundred and twenty:

And whereas between the years one thousand eight hundred and twenty-five and one thousand eight hundred and forty-five a few members of the Baptist Church and its founder were buried under the said chapel and many years afterwards a further burial took place in a family vault:



And whereas the burial grounds of the baptist and independent chapels in the parish of Wandsworth were closed for burials as from the twenty-fifth day of November one thousand eight hundred and fifty-seven by an Order in Council dated the sixteenth day of November one thousand eight hundred and fifty-seven :

And whereas the said piece of land and the chapel erected thereon which was subsequently known as the Fairfield Methodist Mission were purchased by the Company on the twenty-ninth day of January one thousand nine hundred and forty-eight but as the land is a disused burial ground the Company are unable to utilise it and it is expedient that the Company should be authorised to utilise the mission hall or meeting house as a store or for other purposes of the Company or to demolish the same and erect buildings on the said land :

And whereas the purposes of this Act cannot be effected without the authority of Parliament.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title

1. This Act may be cited as the Wandsworth and District Gas Act 1949.

Interpretation.

2. In this Act—

“ the Company ” means the Wandsworth and District Gas Company ;

“ the borough ” means the metropolitan borough of Wandsworth.

Power to use  
burial ground  
in Fairfield  
Street for  
building and  
other purposes.

3. The land forming the site of the mission hall or meeting house known as the Fairfield Methodist Mission formerly the Old Baptist Chapel and the land in front and at the rear thereof the whole containing by admeasurement five hundred and eighty-eight square yards or thereabouts and having a frontage to Fairfield Street in the borough of forty-two feet or thereabouts shall be freed and discharged from all trusts uses obligations disabilities and restrictions which may affect the same by reason of its being a disused burial ground and from all other trusts uses obligations disabilities and restrictions whatsoever heretofore attaching thereto and notwithstanding anything contained in the Disused Burial Grounds Act 1884 and the Open Spaces Act 1887 or any other enactment it shall be lawful for the Company and their successors in title at any time after the passing of this Act to erect or procure the erection of buildings on such land or to deal with the same for any purpose in like manner as if no part thereof had ever been used for the purpose

47 & 48 Vict.  
c. 72.

50 & 51 Vict.  
c. 32.



of burial. Provided that no part of such land shall be used for the manufacture distribution sale or supply of intoxicating liquors nor as a public dance hall.

4.—(1) Before applying or using any part of the land referred to in the last preceding section of this Act for any of the purposes of this Act the Company shall remove or cause to be removed the remains of all deceased persons interred in the said land. Removal of human remains.

(2) Before proceeding to remove any such remains the Company shall publish a notice once in each of three successive weeks in a local newspaper circulating in the borough to the effect that it is intended to remove such remains and such notice shall have embodied in it the substance of subsections (3) (4) (5) (6) and (7) of this section.

(3) At any time within two months after the first publication of such notice any person who is an heir executor administrator or relative of any deceased person in respect of whose remains the Company have published a notice under subsection (2) of this section may give notice in writing to the Company of his intention to undertake the removal of such remains and thereupon he shall be at liberty to cause such remains to be removed to and re-interred in any burial ground or cemetery in which burials may legally take place but in the case of a churchyard only with the previous consent of the incumbent of the parish.

(4) If any person giving such notice as aforesaid shall fail to satisfy the Company that he is such heir executor administrator or relative as he claims to be the question shall be determined on the application of either party in a summary manner by the Wandsworth County Court and such county court shall have power to make an order specifying who shall remove the remains.

(5) The expense of such removal and re-interment (not exceeding in respect of remains removed from any one grave the sum of twenty-five pounds) shall be defrayed by the Company such sum to be apportioned if necessary equally according to the number of remains in the grave.

(6) If within the aforesaid period of two months no such notice as aforesaid shall have been given to the Company in respect of the remains in any grave or if after such notice has been given the person giving the same or (as the case may be) the person specified in any order made under subsection (4) of this section shall fail to comply with the provisions of this section the Company may remove the remains of the deceased person and cause them to be re-interred in a burial ground or cemetery in which burials may legally take place as the Company think suitable for the purpose but in the case of a churchyard only with the previous consent of the incumbent of the parish.



(7) All memorial stones containing inscriptions relating to the remains of any deceased person removed under this section shall at the expense of the Company be removed and replaced at the place of re-interment of such remains or at such place as the said county court may direct on the application (if any) of such heir executor administrator or relative as aforesaid or failing such application on the application of the Company and the Company shall cause to be made a record of such memorial stones and their situation when replaced showing the particulars respecting each memorial stone as a separate entry and such record shall be deposited at the General Register Office Somerset House London with the miscellaneous records in the custody of the Registrar-General.

(8) Any jurisdiction or power conferred on the Wandsworth County Court by this section may be exercised by the registrar of the court.

(9) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health of the borough.

Saving for  
town and  
country  
planning.

5. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Costs of  
Act.

6. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may be defrayed wholly or partly out of revenue.

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